

1.

CASE #	CASE NAME	HEARING NAME
CVRI2104285	ZAMARRIPA VS XTRACTOR DEPOT LLC	MOTION FOR LEAVE TO FILE CROSS COMPLAINT

Tentative Ruling: GRANTED AS UNOPPOSED. WILL NOT CHANGE TRIAL DATE.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402162	JONES VS SIENS	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling: PROOF OF SERVICE: Proper

Grant the motion. Overrule Defendant's objections.

Plaintiff Samuel L. Jones alleges negligence against Defendants Kenneth John Siens and Skeeter Trucking seeking damages related to a car accident on January 8, 2023. Plaintiff alleges Siens was driving a 2020 Peterbilt Tractor with a bronze Mack Dump trailer in the course and scope of his employment for Skeeter Trucking when his truck collided with Plaintiff's car.

Plaintiff is eighty years old and seeks trial preference under CCP §36(a). Plaintiff asserts he suffers from interstitial lung disease (ILD), Type 2 diabetes, and hypertension. The motion is supported by a declaration from Dr. Anil Date, M.D., who states Plaintiff "suffers from a rapidly diminishing reserve of the physical and cognitive stamina required to endure stressful or prolonged environments, such as trial." (Date Decl. ¶¶6.) It is Dr. Date's professional opinion that "Mr. Jones's health is in a precarious and declining state. If this matter is delayed beyond the next 120 days, it is highly probable that Mr. Jones will lack the physical capacity, respiratory stamina, and cognitive endurance required to meaningfully participate in his own trial or assist his counsel." (¶¶7.)

Defendant Kenneth John Siens dba Skeeter Trucking opposes the motion. Defendant argues Dr. Date's opinion is not enough to warrant trial preference because Dr. Date did not physically examine Plaintiff and only offered speculative predictions regarding Plaintiff's future medical conditions. Defendant also filed objections to Dr. Date's declaration.

In Reply, Plaintiff argues Defendant's objections are moot because the motion relies on Plaintiff's Department of Veterans Affairs' medical records which are in Defendant's possession. The Reply also includes the declaration of Ari E. Moss to authenticate the VA records.

Plaintiff brings this motion pursuant to CCP §36(a), which provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is

necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2); §36(f).) Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court (Metalclad Insulation, LLC)* (2018) 21 Cal.App.5th 529, 534.) The purpose of trial preference under Section 36 is "to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress." (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Here, there is no dispute that Plaintiff is 80 years old. It is quite clear that Plaintiff has a substantial interest in the action and his health is such "that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2).) There is also no dispute that Plaintiff has a substantial interest in this action. The salient question is whether Plaintiff's health makes preference "necessary to prevent prejudicing his interest in the litigation." (*Id.*) Pursuant to CCP § 36.5 "[a]n affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney or the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of the party." Importantly, the *Fox* Court noted that the standard under CCP "subdivision (a), unlike under subdivision (d), which is more specific and more rigorous, includes no requirement of a doctor's declaration." (*Fox, supra.*)

The court previously heard and denied Plaintiff's motion for trial preference because the motion was only supported by an attorney declaration that did not contain sufficient evidence to support granting trial preference. However, the instant motion is supported by Dr. Date's declaration that clearly states trial preference is necessary. (Date Decl. ¶¶8.) Defendant takes issue with the fact that Dr. Date only reviewed Plaintiff's medical records and conducted a telehealth visit and did not examine Plaintiff personally. There is no such requirement for granting trial preference. In fact, a motion for trial preference can be based solely upon an attorney's declaration. Plaintiff has provided authenticated copies of his medical records from the VA (Moss Decl. ¶4, Ex. A) and Dr. Date explained their ultimate medical opinion was based on those records and the conversation they had with Plaintiff. (Date Decl. ¶¶4-5, 7-8.) Plaintiff has met his burden to entitle him to trial preference.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507054	MINTZ VS JON ZORN DBA HUMMINGBIRD MHP INC.	MOTION TO COMPEL & REQUEST FOR SANCTIONS

Tentative Ruling: PROOF OF SERVICE: Proper

DENY